

26STCV05567 26STCV05567

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Case Number: 26STCV05567 Hearing Date: September 11, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 11, 2026

Case Name: Food Camp Corporation v.

Orion Corporation, et al.

Case No.: 26STCV05567 Matter: Motion for Preliminary Injunction

Moving

Party: Plaintiff Food Camp

Corporation

Responding Party: Defendants Orion F&B U.S. Inc. and

Orion Corporation

Tentative

Ruling: Plaintiff Food Camp

Corporation's motion for preliminary injunction is denied.

Plaintiff Food

Camp Corporation ("Plaintiff") brought this action against Defendants Orion

F&B U.S. Inc. ("F&B") and Orion Corporation ("Orion Corp.")

(collectively, "Defendants"). The Complaint alleges three causes of action for:

(1) breach of contract; (2) breach of contract; and (3) tortious interference.

On July 10,
2026, the Court denied Defendants' motion to compel arbitration.

On July 24,
2026, Defendants filed a notice of appeal.

Plaintiff
moves for a preliminary injunction against Defendants. Defendants oppose.

Legal Standard

The
standards governing a preliminary injunction are well known. "[A] court will deny a preliminary injunction unless there is a reasonable probability that the plaintiff will be successful on the merits, but the granting of a preliminary injunction does not amount to an adjudication of the merits." (Beehan v. Lido Isle Community Assn. (1977) 70 Cal.App.3d 858, 866 (Beehan).) "The function of a preliminary injunction is the preservation of the status quo until a final determination of the merits." (Ibid.)

"Trial
courts traditionally consider and weigh two factors in determining whether to issue a preliminary injunction. They are (1) how likely it is that the moving party will prevail on the merits, and (2) the relative harm the parties will suffer in the interim due to the issuance or nonissuance of the injunction." (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) "[T]he greater the ... showing on one, the less must be shown on the other to support an injunction." (Ibid. [quoting Butt v. State of California, (1992) 4 Cal.4th 668, 678].) The burden of proof is on the moving party "to show all elements necessary to support issuance of a preliminary injunction." (O'Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481 (O'Connell).)

Preliminary injunctive relief
requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See e.g., Ancora-Citronelle Corp. v. Green (1974) 41 Cal.App.3d 146, 150.) "The scope of available preliminary relief is necessarily limited by the scope of the relief likely to be obtained at trial on the merits." (O'Connell, supra, 141

Cal.App.4th at p. 1463.)

Evidentiary Objections

Defendants

make 28 evidentiary objections to Nackhyun Kim's Declaration. The Court rules in the following manner:

Sustained: 3

(Improper Lay Opinion/Legal Conclusion), 4 (improper Lay Opinion/Legal Conclusion), 5 (Parol Evidence), 6 (Improper Lay Opinion/Legal Conclusion), 8 (Hearsay/Lack of Foundation), 9 (Lack of Personal Knowledge), 10 (Lack of Personal Knowledge/Improper Lay Opinion), 11 (Improper Lay Opinion/Legal Conclusion), 12 (Improper Lay Opinion), 13 (Lack of Personal Knowledge/Improper Lay Opinion/Legal Conclusion), 14 (Hearsay), 15 (Lack of Foundation), 16 (Improper Lay Opinion), 19 (Hearsay), 20 (Speculation/Hearsay), 21 (Improper Lay Opinion/Legal Conclusion), 23 (Lack of Personal Knowledge/Hearsay), 24 (Improper Lay Opinion/Legal Conclusion), 25 (Improper Lay Opinion/Legal Conclusion/Hearsay), 28 (Lack of Personal Knowledge)

Overruled: 1,

2, 7, 17, 18, 22, 26, 27

Plaintiff

makes 11 evidentiary objections to the Heeyoung (Luke) Gil's ("Luke") declaration. The Court rules in the following manner:

Sustained: 3

(Improper Lay Opinion/Lack of Authentication), 7 (Improper Lay Opinion/Legal Conclusion), 8 (Improper Lay Opinion/Legal Conclusion), 9 (Speculation, Improper Lay Opinion/Legal Conclusion), 10 (Speculation)

Overruled: 1,

2, 4, 5, 6, 11

Plaintiff

also objects to Jinsoo Yang's declaration in its entirety for not being properly verified. The Court agrees. The only information provided to the Court is that "[b]efore execution, this declaration was translated for me from

English into Korean by a 2 bilingual (English-Korean)-employee of the Orion legal department handling this litigation.” (Yang Decl., 1:10-11.) The evidentiary objection is sustained.

Plaintiff

also objects to Yongsik Han’s declaration in its entirety for not being properly verified. The Court agrees. Han’s declaration only provides the same assertion as within Yang’s declaration. (Han Decl., 5:1-2.) The evidentiary objection is sustained.

Analysis

Plaintiff

moves for a preliminary injunction against Defendants to restrain them from continued breaches of the 2020 Exclusive Distribution Agreement (“Agreement”) between Plaintiff and Orion Corp., including Defendants’ misuse of Plaintiff’s confidential customers lists to solicit Plaintiff’s customers.

Preliminary

Matters

Lack

of Certified Translations

Plaintiff

argues that Defendants’ Exhibits 1 and 2 attached to Luke’s declaration must be excluded because Defendants did not provide a certified translation pursuant to California Rules of Court, rule 3.1110(g). The Court agrees.

Thus, the Court

will not consider these exhibits.

Improper Presentation of Evidence

on Reply

““The

general rule of motion practice ... is that new evidence is not permitted with reply papers.”” (Maleti v. Wickers (2022) 82 Cal.App.5th 181, 227.) The reason for not allowing new arguments in the reply papers “is based on the same solid logic applied in the appellate courts, specifically, that ‘[p]oints

raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.” (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1538.)

Plaintiff

filed three declarations with new evidence that were not introduced with its moving papers. In Plaintiff’s moving papers, the only declarations submitted were on behalf of Kasey J. Curtis and Nackhyun Kim. But, in reply, Plaintiff has filed a nine-page declaration with 134 pages of exhibits by Nackhyun Kim. Plaintiff also filed Gi Nam Lee and Jiyoung Park’s declarations. All the evidence presented in these reply declarations is improperly brought forth because there is no justification for why Plaintiff did not present this evidence with its moving papers to meet its burden. Moreover, due to Plaintiff’s failure to timely present its evidence with its moving papers, it has deprived Defendants of the opportunity to make evidentiary objections or dispute the evidence.

Thus, the

Court will not consider the declarations containing new evidence.

Preliminary

Injunction

Probability of

Prevailing on the Merits

Plaintiff

argues that it has presented sufficient evidence to establish its probability of prevailing on the merits of the causes of action alleged against Defendants.

First

and Second Causes of Action—Breach of Contract for Distribution

Rights

and Use of Confidential Information

To prevail

on a breach of contract claim, Plaintiff must show (1) it had a contract with Defendants, (2) Plaintiff performed its contractual obligations or had a valid excuse for

not doing so, (3) Defendants breached the contract, and (4) Plaintiff was consequently damaged. (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1184.)

Valid
Agreement

Plaintiff

contends it has presented prima facie evidence of the contract's existence. Plaintiff relies on the Court's previous ruling regarding the denial of Defendant's Motion to Compel Arbitration. (July 10, 2026, Minute Order.) However, this argument alone is insufficient to establish that the parties entered into a valid contract. The Court's ruling on July 10, 2026, was limited to the Motion to Compel Arbitration; it was not a final adjudication of Plaintiff's claims. Plaintiff does not argue the validity of the Agreement.

In opposition,

Defendants argue that Plaintiff does not have standing to enforce the Agreement because it is a non-party to the Agreement. "Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." (Code Civ. Proc., § 367.) "A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it." (Civ. Code, § 1559.) The Court is persuaded.

The Agreement names

Orion Corporation, but does not name Plaintiff as Food Camp Corporation. (Compl., Ex. A.) Instead, the Agreement names Plaintiff as "Food Camp/WeFARM." (Ibid.) Plaintiff declares that the Agreement was executed by it, and for its benefit. (N. Kim Decl. ¶ 7.) The Agreement does not include F&B.

Defendants also

argue that Taemin Kim did not have the authority to enter into the purported Agreement on behalf of Orion Corp. Also, the purported Agreement is so vague that it is void and unenforceable.

"Ostensible

authority is such as a principal, intentionally or by want of ordinary care, causes or allows a third person to believe the agent to possess." (Civ. Code, § 2317.) "A principal is bound by acts of his agent, under a merely ostensible authority, to those persons only who have in good faith, and without want of

ordinary care, incurred a liability or parted with value, upon the faith thereof.” (Civ. Code, § 2334.)

Here, the only admissible evidence presented by Plaintiff is that Taemin Kim’s title at the time was U.S. Regional Manager for Orion, and he was involved with “(1) confirming final orders and setting sales targets, (2) managing our North America sales territories, (3) signing off on new customer accounts, (4) managing customer contracts, and (5) assisting with the resolution of any customer issues.” (N. Kim Decl., ¶ 8.) This alone is insufficient to support the argument that Taemin Kim had ostensible authority to bind Defendants to the Agreement. Plaintiff further argues that Orion Corp. ratified such conduct, but the evidence it relies on is from Nackhyun Kim’s declaration submitted on reply, which the Court has established that it will not consider.

Moreover, Defendants argue that the Agreement is vague. “Where a contract has but a single object, and such object is unlawful, whether in whole or in part, or wholly impossible of performance, or so vaguely expressed as to be wholly unascertainable, the entire contract is void.” (Civ. Code, § 1598.) ““Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties’ obligations and to determine whether those obligations have been performed or breached.”” (Bustamante v. Intuit, Inc. (2006) 141 Cal.App.4th 199, 209.)

Defendants contend that the terms of the Agreement are uncertain and that, because Plaintiff drafted the Agreement, it must be construed against it. (Civ. Code, § 1654.) The Court is persuaded by Defendants’ argument. The Agreement does not clearly define the geographic location as west of the United States; it states only, “Western half of the United States of America, defined as all states west of Chicago, Illinois, including Chicago.” (Compl., Ex. A.) Similarly, the Agreement states that:

THIS AGREEMENT is a perpetuating guarantee for 2 years from the date of execution and is to be applied to any and all transactions present and future, of the introducing party, including subsequent follow-up, repeat, extended, renegotiated, and new transactions.

(Compl., Ex. A.)

Defendants argue

that this term is unclear, and the Court agrees. The Agreement also does not define what exclusivity entails with regard to the information about the contacts, unlike the methods or concepts. (Compl., Ex. A.) In reply, Plaintiff does not address these arguments.

Based on the

evidence presented by Plaintiff, it has not met its burden to support its probability of success on the merits as to Orion Corp regarding the first and second causes of action due to the validity and enforceability of the 2020 Agreement.

Thus, Plaintiff has

not established probability of prevailing on the merits as to the first and second causes of action.

Alter

Ego

Plaintiff

argues that Orion Corp. exercises pervasive control over F&B, making both entities alter egos of one another.

In opposition,

Defendants argue that Plaintiff has not established that the entities are alter egos and dispute that the parties are alter egos. However, because Plaintiff has not produced sufficient evidence that warrants the granting of its motion as to Orion Corp., the Court will not address these arguments because the arguments depend on the validity and enforceability of the Agreement.

Third

Cause of Action—Tortious Interference

A

claim for tortious interference requires that a plaintiff prove: “(1) he had a valid and existing contract with a third party; (2) defendant had knowledge of this contract; (3) defendant committed intentional and unjustified acts designed to interfere with or disrupt the contract; (4) actual interference

with or disruption of the relationship; and (5) resulting damages.” (Little v. Amber Hotel Co. (2011) 202 Cal.App.4th 280, 291–292.)

Similarly,
Plaintiff fails to produce sufficient evidence as to its third cause of action because it is dependent on the validity and enforceability of the Agreement.

Thus,
Plaintiff has not established the probability of prevailing on the third cause of action.

Therefore,
Plaintiff has not established the probability of prevailing on the merits of its claims. Because Plaintiff has not prevailed on the first prong, Plaintiff is not entitled to a preliminary injunction against Defendants.

Conclusion

Plaintiff
Food Camp Corporation’s motion for preliminary injunction is denied.